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AS AMENDED

By: Bergstrom

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14 SECTION 1. AMENDATORY 57 O.S. 2021, Section 138, as
15 amended by Section 11, Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024,
16 Section 138), is amended to read as follows:

Section 138. A. Except as otherwise provided by law, every inmate of a state correctional institution shall have ~~their~~ his or her term of imprisonment reduced monthly, based upon the class level to which they are assigned. Earned credits may be subtracted from the total credits accumulated by an inmate, upon recommendation of the institution's disciplinary committee, following due process, and upon approval of the warden or superintendent. Each earned credit is equivalent to one (1) day of incarceration. Lost credits may be

1 restored by the warden or superintendent upon approval of the
2 classification committee. If a maximum and minimum term of
3 imprisonment is imposed, the provisions of this subsection shall
4 apply only to the maximum term. No deductions shall be credited to
5 any inmate serving a sentence of life imprisonment; however, a
6 complete record of the inmate's participation in work, school,
7 vocational training, or other approved program shall be maintained
8 by the Department of Corrections for consideration by the paroling
9 authority. No earned credit deductions shall be credited or
10 recorded for any inmate serving any sentence for a criminal act
11 which resulted in the death of a police officer, a law enforcement
12 officer, an employee of the Department of Corrections, or an
13 employee of a private prison contractor and the death occurred while
14 the police officer, law enforcement officer, employee of the
15 Department of Corrections, or employee of a private prison
16 contractor was acting within the scope of ~~their~~ his or her
17 employment. No earned credit deductions shall be credited or
18 recorded for any person who is referred to an intermediate
19 revocation facility for violating any of the terms and conditions of
20 probation.

21 B. The Department of Corrections is directed to develop a
22 written policy and procedure whereby inmates shall be assigned to
23 one of four class levels determined by an adjustment review
24 committee of the facility to which the inmate is assigned. The

1 policies and procedures developed by the Department shall include,
2 but not be limited to, written guidelines pertaining to awarding
3 credits for rehabilitation, obtaining job skills and educational
4 enhancement, participation in and completion of alcohol/chemical
5 abuse programs, incentives for inmates to accept work assignments
6 and jobs, work attendance and productivity, conduct record,
7 participation in programs, cooperative general behavior, and
8 appearance. When assigning inmates to a class level, the adjustment
9 review committee shall consider all aspects of the policy and
10 procedure developed by the Department including, but not limited to,
11 the criteria for awarding credits required by this subsection.

12 C. If an inmate is subject to misconduct, nonperformance, or
13 disciplinary action, earned credits may be removed according to the
14 policies and procedures developed by the Department. Earned credits
15 removed for misconduct, nonperformance, or disciplinary action may
16 be restored as provided by Department policy, if any.

17 D. 1. Class levels shall be as follows:

18 a. Class level 1 shall include inmates not eligible to
19 participate in class levels 2 through 4, and shall
20 include, but not be limited to, inmates on escape
21 status.

22 b. Class level 2 shall include an inmate who has been
23 given a work, education, or program assignment, has
24 received a good evaluation for participation in the

1 work, education, or program assignment, and has
2 received a good evaluation for personal hygiene and
3 maintenance of living area.

4 c. Class level 3 shall include an inmate who has been
5 incarcerated at least three (3) months, has received
6 an excellent work, education, or program evaluation,
7 and has received an excellent evaluation for personal
8 hygiene and maintenance of living area.

9 d. Class level 4 shall include an inmate who has been
10 incarcerated at least eight (8) months, has received
11 an outstanding work, education, or program evaluation,
12 and has received an outstanding evaluation for
13 personal hygiene and maintenance of living area.

14 2. a. Until November 1, 2001, class level corresponding
15 credits are as follows:

16 Class 1 - 0 Credits per month;

17 Class 2 - 22 Credits per month;

18 Class 3 - 33 Credits per month;

19 Class 4 - 44 Credits per month.

20 b. Class level corresponding credits beginning November
21 1, 2001, for inmates who have ever been convicted as
22 an adult or a youthful offender or adjudicated
23 delinquent as a juvenile for a felony offense
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1 enumerated in subsection E of this section are as
2 follows:

3 Class 1 - 0 Credits per month;

4 Class 2 - 22 Credits per month;

5 Class 3 - 33 Credits per month;

6 Class 4 - 44 Credits per month.

7 c. Class level corresponding credits beginning November
8 1, 2001, for inmates who have never been convicted as
9 an adult or a youthful offender or adjudicated
10 delinquent as a juvenile for a felony offense
11 enumerated in subsection E of this section are as
12 follows:

13 Class 1 - 0 Credits per month;

14 Class 2 - 22 Credits per month;

15 Class 3 - 45 Credits per month;

16 Class 4 - 60 Credits per month.

17 Each inmate shall receive the above specified monthly credits
18 for the class to which he or she is assigned. In determining the
19 prior criminal history of the inmate, the Department of Corrections
20 shall review criminal history records available through the Oklahoma
21 State Bureau of Investigation, Federal Bureau of Investigation, and
22 National Crime Information Center to determine the reported felony
23 convictions of all inmates. The Department of Corrections shall
24 also review the Office of Juvenile Affairs Juvenile ~~On-line~~ Online

1 Tracking System for inmates who were adjudicated delinquent or
2 convicted as a youthful offender for a crime that would be an
3 offense enumerated in subsection E of this section.

4 3. In addition to the criteria established for each class in
5 paragraph 1 of this subsection, the following requirements shall
6 apply to each of levels 2 through 4:

- 7 a. satisfactory participation in the work, education, or
8 program assignment at the standard required for the
9 particular class level,
- 10 b. maintenance of a clean and orderly living area and
11 personal hygiene at the standard required for the
12 particular class level,
- 13 c. cooperative behavior toward facility staff and other
14 inmates, and
- 15 d. satisfactory participation in the requirements of the
16 previous class level.

17 4. The evaluation scale for assessing performance shall be as
18 follows:

- 19 a. Outstanding - For inmates who display consistently
20 exceptional initiative, motivation, and work habits.
- 21 b. Excellent - For inmates who display above-average work
22 habits with only minor errors and rarely perform below
23 expectations.

1 c. Good - For inmates who perform in a satisfactory
2 manner and complete tasks as required, doing what is
3 expected, with only occasional performance above or
4 below expectations.

5 d. Fair - For inmates who may perform satisfactorily for
6 some periods of time, but whose performance is marked
7 by obviously deficient and weak areas and could be
8 improved.

9 e. Poor - For inmates whose performance is unsatisfactory
10 and falls below expected and acceptable standards.

11 E. No person ever convicted as an adult or a youthful offender
12 or adjudicated delinquent as a juvenile in this state for any felony
13 offense enumerated in this subsection or a similar felony offense
14 pursuant to the provisions of another state, the United States, or a
15 military court shall be eligible for the credits provided by the
16 provisions of subparagraph c of paragraph 2 of subsection D of this
17 section. Such enumerated offenses include:

18 1. Assault, battery, or assault and battery with a dangerous
19 weapon as defined by Section 645, subsection C of Section 652 of
20 Title 21, or Section 2-219 of Title 43A of the Oklahoma Statutes;

21 2. Aggravated assault and battery on a police officer, sheriff,
22 highway patrolman, or any other officer of the law as defined by
23 Section 650, subsection C of Section 650.2, Section 650.5,

1 subsection B of Section 650.6, or subsection C of Section 650.7 of
2 Title 21 of the Oklahoma Statutes;

3 3. Poisoning with intent to kill as defined by Section 651 of
4 Title 21 of the Oklahoma Statutes;

5 4. Shooting with intent to kill as defined by Section 652 of
6 Title 21 of the Oklahoma Statutes;

7 5. Assault with intent to kill as defined by Section 653 of
8 Title 21 of the Oklahoma Statutes;

9 6. Assault with intent to commit a felony as defined by Section
10 681 of Title 21 of the Oklahoma Statutes;

11 7. Assaults while masked or disguised as defined by Section
12 1303 of Title 21 of the Oklahoma Statutes;

13 8. Entering premises of another while masked as defined by
14 Section 1302 of Title 21 of the Oklahoma Statutes;

15 9. Murder in the first degree as defined by Section 701.7 of
16 Title 21 of the Oklahoma Statutes;

17 10. Solicitation for ~~Murder~~ murder in the first degree as
18 defined by Section 701.16 of Title 21 of the Oklahoma Statutes;

19 11. Murder in the second degree as defined by Section 701.8 of
20 Title 21 of the Oklahoma Statutes;

21 12. Manslaughter in the first degree as defined by Section 711
22 or 712 of Title 21 of the Oklahoma Statutes;

23 13. Manslaughter in the second degree as defined by Section 716
24 or 717 of Title 21 of the Oklahoma Statutes;

1 14. Kidnapping as defined by Section 741 of Title 21 of the
2 Oklahoma Statutes;

3 15. Burglary in the first degree as defined by Section 1431 of
4 Title 21 of the Oklahoma Statutes;

5 16. Burglary with explosives as defined by Section 1441 of
6 Title 21 of the Oklahoma Statutes;

7 17. Kidnapping for extortion as defined by Section 745 of Title
8 21 of the Oklahoma Statutes;

9 18. Maiming as defined by Section 751 of Title 21 of the
10 Oklahoma Statutes;

11 19. Robbery as defined by Section 791 of Title 21 of the
12 Oklahoma Statutes;

13 20. Robbery in the first degree as defined by Section 797 of
14 Title 21 of the Oklahoma Statutes;

15 21. Robbery in the second degree as defined by Section 797 of
16 Title 21 of the Oklahoma Statutes;

17 22. Armed robbery as defined by Section 801 of Title 21 of the
18 Oklahoma Statutes;

19 23. Robbery by two or more persons as defined by Section 800 of
20 Title 21 of the Oklahoma Statutes;

21 24. Robbery with dangerous weapon or imitation firearm as
22 defined by Section 801 of Title 21 of the Oklahoma Statutes;

23 25. Any crime against a child provided for in Section 843.5 of
24 Title 21 of the Oklahoma Statutes;

1 26. Wiring ~~any equipment,~~ or equipping any vehicle or structure
2 with explosives as defined by Section 849 of Title 21 of the
3 Oklahoma Statutes;

4 27. Forcible sodomy as defined by Section 888 of Title 21 of
5 the Oklahoma Statutes;

6 28. Rape in the first degree as defined by Sections 1111 and
7 1114 of Title 21 of the Oklahoma Statutes;

8 29. Rape in the second degree as defined by Sections 1111 and
9 1114 of Title 21 of the Oklahoma Statutes;

10 30. Rape by instrumentation as defined by Section 1111.1 of
11 Title 21 of the Oklahoma Statutes;

12 31. Lewd or indecent proposition or lewd or indecent act with a
13 child as defined by Section 1123 of Title 21 of the Oklahoma
14 Statutes;

15 32. Sexual battery of a person over 16 as defined by Section
16 1123 of Title 21 of the Oklahoma Statutes;

17 33. Use of a firearm or offensive weapon to commit or attempt
18 to commit a felony as defined by Section 1287 of Title 21 of the
19 Oklahoma Statutes;

20 34. Pointing firearms as defined by Section 1289.16 of Title 21
21 of the Oklahoma Statutes;

22 35. Rioting as defined by Section 1311 or 1321.8 of Title 21 of
23 the Oklahoma Statutes;

1 36. Inciting to riot as defined by Section 1320.2 of Title 21
2 of the Oklahoma Statutes;

3 37. Arson in the first degree as defined by Section 1401 of
4 Title 21 of the Oklahoma Statutes;

5 38. Endangering human life during arson as defined by Section
6 1405 of Title 21 of the Oklahoma Statutes;

7 39. Injuring or burning public buildings as defined by Section
8 349 of Title 21 of the Oklahoma Statutes;

9 40. Sabotage as defined by Section 1262, 1265.4 or 1265.5 of
10 Title 21 of the Oklahoma Statutes;

11 41. Extortion as defined by Section 1481 or 1486 of Title 21 of
12 the Oklahoma Statutes;

13 42. Obtaining signature by extortion as defined by Section 1485
14 of Title 21 of the Oklahoma Statutes;

15 43. Seizure of a bus, discharging firearm or hurling missile at
16 bus as defined by Section 1903 of Title 21 of the Oklahoma Statutes;

17 44. Mistreatment of a vulnerable adult as defined by Section
18 843.1 of Title 21 of the Oklahoma Statutes;

19 45. Sex offender providing services to a child as defined by
20 Section 404.1 of Title 10 of the Oklahoma Statutes;

21 46. A felony offense of domestic abuse as defined by subsection
22 C of Section 644 of Title 21 of the Oklahoma Statutes;

23 47. Prisoner placing body fluid on government employee as
24 defined by Section 650.9 of Title 21 of the Oklahoma Statutes;

1 48. Poisoning food or water supply as defined by Section 832 of
2 Title 21 of the Oklahoma Statutes;
3 49. Trafficking in children as defined by Section 866 of Title
4 21 of the Oklahoma Statutes;
5 50. Incest as defined by Section 885 of Title 21 of the
6 Oklahoma Statutes;
7 51. Procure, produce, distribute, or possess ~~juvenile~~
8 ~~pornography~~ child sexual abuse material as defined by Section 1021.2
9 of Title 21 of the Oklahoma Statutes;
10 52. Parental consent to ~~juvenile pornography~~ child sexual abuse
11 material as defined by Section 1021.3 of Title 21 of the Oklahoma
12 Statutes;
13 53. Soliciting minor for indecent exposure as defined by
14 Section 1021 of Title 21 of the Oklahoma Statutes;
15 54. Distributing obscene material or child ~~pornography~~ sexual
16 abuse material as defined by Section 1040.13 of Title 21 of the
17 Oklahoma Statutes;
18 55. Child sex trafficking as defined by Section 1030 of Title
19 21 of the Oklahoma Statutes;
20 56. Procuring a minor for child sex trafficking or other lewd
21 acts as defined by Section 1087 of Title 21 of the Oklahoma
22 Statutes;
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1 57. Transporting a child under eighteen (18) years of age for
2 purposes of child sex trafficking as defined by Section 1087 of
3 Title 21 of the Oklahoma Statutes;

4 58. Inducing a minor to engage in child sex trafficking as
5 defined by Section 1088 of Title 21 of the Oklahoma Statutes;

6 59. A felony offense of stalking as defined by subsection D of
7 Section 1173 of Title 21 of the Oklahoma Statutes;

8 60. Spread of infectious diseases as defined by Section 1192 of
9 Title 21 of the Oklahoma Statutes;

10 61. Advocate overthrow of government by force, commit or
11 attempt to commit acts to overthrow the government, organize or
12 provide assistance to groups to overthrow the government as defined
13 by Section 1266, 1266.4 or 1267.1 of Title 21 of the Oklahoma
14 Statutes;

15 62. Feloniously discharging a firearm as defined by Section
16 1289.17A of Title 21 of the Oklahoma Statutes;

17 63. Possession, use, manufacture, or threat of incendiary
18 device as defined by Section 1767.1 of Title 21 of the Oklahoma
19 Statutes;

20 64. Causing a personal injury accident while driving under the
21 influence as defined by Section 11-904 of Title 47 of the Oklahoma
22 Statutes; or
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1 65. Using a motor vehicle to facilitate the discharge of a
2 firearm as defined by Section 652 of Title 21 of the Oklahoma
3 Statutes.

4 F. The policy and procedure developed by the Department of
5 Corrections shall include provisions for adjustment review
6 committees of not less than three members for each such committee.
7 Each committee shall consist of a classification team supervisor who
8 shall act as chairman, the case manager for the inmate being
9 reviewed or classified, a correctional officer or inmate counselor,
10 and not more than two other members, if deemed necessary, determined
11 pursuant to policy and procedure to be appropriate for the specific
12 adjustment review committee or committees to which they are
13 assigned. At least once every four (4) months the adjustment review
14 committee for each inmate shall evaluate the class level status and
15 performance of the inmate and determine whether ~~or not~~ the class
16 level for the inmate should be changed.

17 Any inmate who feels aggrieved by a decision made by an
18 adjustment review committee may utilize normal grievance procedures
19 in effect with the Department of Corrections and in effect at the
20 facility in which the inmate is incarcerated.

21 G. Inmates granted medical leaves for treatment that cannot be
22 furnished at the penal institution where incarcerated shall be
23 allowed the time spent on medical leave as time served. Any inmate
24 placed into administrative segregation for nondisciplinary reasons

1 by the institution's administration may be placed in Class 2. The
2 length of any jail term served by an inmate before being transported
3 to a state correctional institution pursuant to a judgment and
4 sentence of incarceration shall be deducted from the term of
5 imprisonment at the state correctional institution. Inmates
6 sentenced to the Department of Corrections and detained in a county
7 jail as a result of the Department's reception scheduling procedure
8 shall be awarded earned credits as provided for in subparagraph b of
9 paragraph 1 of subsection D of this section, beginning on the date
10 of the judgment and sentence, unless the inmate is convicted of a
11 misdemeanor or felony committed in the jail while the inmate is
12 awaiting transport to the Lexington Assessment and Reception Center
13 or other assessment and reception location determined by the
14 Director of the Department of Corrections.

15 H. Additional achievement earned credits for successful
16 completion of departmentally approved programs or for attaining
17 goals or standards set by the Department shall be awarded as
18 follows:

19 Bachelor's degree.....200 credits;
20 Associate's degree.....100 credits;
21 High School Diploma or High School
22 Equivalency Diploma.....90 credits;
23 Certification of Completion of
24 Vocational Training.....80 credits;

1 Successful completion of

2 Alcohol/Chemical Abuse Treatment

3 Program of not less than four (4)

4 months continuous participation.....70 credits;

5 Successful completion of other

6 Educational Accomplishments or

7 other programs not specified in

8 this subsection.....10-30 credits;

9 Achievement earned credits are subject to loss and restoration in

10 the same manner as earned credits. Achievement earned credits for a

11 high school diploma or high school equivalency diploma may be

12 attained by an inmate who completes such a program during continuous

13 custody in a county jail while awaiting trial, sentencing, or

14 transfer to the custody of the Department of Corrections. To

15 qualify, an inmate must have been detained in connection with the

16 case that resulted in his or her prison sentence and there must have

17 been continuous custody in a county jail for program completion and

18 transfer to the Department. Upon sentencing and transfer to the

19 Department, the inmate shall receive achievement earned credits in

20 the amount specified in this subsection, provided the county jail

21 documents completion of the program, including the date of

22 certification earned, on the official jail sentence form. The

23 official jail sentence form shall accompany the inmate upon transfer

24 to the Department.

1 I. The accumulated time of every inmate shall be tallied
2 monthly and maintained by the institution where the term of
3 imprisonment is being served. A record of ~~said~~ such accumulated
4 time shall be:

5 1. Sent to the administrative office of the Department of
6 Corrections on a quarterly basis; and

7 2. Provided to the inmate.

8 SECTION 2. This act shall become effective November 1, 2025.

9 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
10 March 4, 2025 - DO PASS AS AMENDED
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